

25STCV08698 25STCV08698

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Case Number: 25STCV08698 Hearing Date: June 23, 2026 Dept: 732

Jennifer Troia, Director of California Department of

Social Services v. The Food Bank of Southern California., et al.

Wednesday, June 23, 2026

CASE NUMBER: 25STCV08698

OPPOSED

Plaintiff Jennifer

Troia, as Director of California's Department of Social Services' Motion to

Compel Further Responses and Production for Requests for Production from

Defendant Gregg Bynum

Facts: This is an

action for breach of contract, fraud, and conversion, brought by Plaintiff

Jennifer Troia in her capacity as Director of the California Department of

Social Services ("DSS"). The Complaint alleges as follows. DSS had at least two contracts with Defendant The Food Bank of Southern California ("Food Bank") through which DSS agreed to reimburse Food Bank for certain disbursements and expenses related to its mission to provide food to those in need, pursuant to various California and federal programs. (Complaint ¶¶ 26–55.)

In response to a whistleblower complaint in June 2024, DSS investigated and uncovered various acts of misappropriation of the funds it provided to Food Bank. (Complaint ¶¶ 61–64.) Food Bank obtained reimbursement from DSS for expenditures to third party companies owned or associated with one of its officers, Defendant Giuseppe Briguglio and his relative, Defendant Abele Cosmo Briguglio, which were not lawfully compensable and in many cases were for goods and services never delivered. (Complaint ¶¶ 67–116.) Similar apportionments

were made to companies associated with Food Bank officer Defendant Dion Rambo, (Complaint ¶¶ 117–123.) Food Bank received funds for certain programs which failed to meet program requirements. (Complaint ¶¶ 124–152.)

Food Bank received reimbursement for CEO travel, donor management, and other non-compensable items. (Complaint ¶¶ 153– 179.) The officers and directors violated the Food Bank's bylaws, failed to maintain corporate formalities, and Defendants Jeanne Cooper, Lamarr Ramsey, Brian Weaver, Egerton Forster, Alice Harris, Rambo

diverted funds for private uses.

(Complaint ¶¶ 180–229.)

Procedural History: Plaintiff filed the Complaint on March

25, 2025, alleging nine causes of action:

1.

Breach of Contract

2.

Petition for Writ of Possession

3.

Breach of Implied Covenant of Good Faith and Fair

Dealing

4.

Money Had and Received

5.

Equitable Accounting

6.

Fraud – Concealment

7.

Fraud – Intentional Misrepresentation

8.

Conversion

9.

Declaratory Relief

This court on January 12, 2026,

sustained in part the demurrer of Defendants Abele Cosmo Briguglio, Joe

Briguglio, ANB Consulting Services, Inc., Creative Foods, Inc., Heritage Fine

Foods, Inc., JCO Holdings, and River Point Foods, Inc., to the seventh cause of

action for fraudulent concealment with leave to amend, and as to the eighth

cause of action for fraudulent misrepresentation with leave to amend against Defendants

G. Briguglio and A. Briguglio. The court granted these defendants' motion to

strike allegations in paragraphs 324 and 325 of the Complaint alleging

conversion of real property.

Plaintiff filed a First Amended

Complaint ("FAC") on February 11, 2026, alleging the same causes of action as

in the original Complaint.

On April 28, 2026, this court

denied Defendants Foodbank and Brian Weaver's motions to quash subpoenas, but

granted their motion in part as directed to Quigley & Myron.

Plaintiff filed the present

motion to compel further on May 14, 2026.

Defendant

Bynum filed an opposition on June 10, 2026.

Plaintiff

filed a reply on June 15, 2026.

Analysis

I.

MOTION TO

COMPEL FURTHER

“A party may demand

that any other party produce . . . a document that is in the possession,

custody, or control of the party on whom the demand is made.” (Code Civ. Proc.,

§ 2031.010(b).) The demanding party may move for an order compelling further

response to the demand if the demanding party deems that (1) a statement of

compliance with the demand is incomplete, (2) a representation of inability to

comply is inadequate, incomplete, or evasive, or (3) an objection in the

response is without merit or too general. (Code Civ. Proc., § 2031.310(a).) “The

motion shall set forth specific facts showing good cause justifying the

discovery sought by the demand,” and “[t]he motion shall be accompanied by a

meet and confer declaration under Section 2016.040.” (Code Civ. Proc., §

2031.310(b).)

A motion to compel

a further response to an inspection demand must set forth specific facts

showing “good cause” justifying the discovery sought by the inspection demand.

(Code Civ. Proc., § 2031.310(b)(1); Kirkland

v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Unless there is a

legitimate privilege issue or claim of attorney work product, that burden is

met simply by a fact-specific showing of relevance. (TBG Ins. Services Corp. v. Superior Court (2002) 96 Cal.App.4th

443, 444.) Once the moving party demonstrates good cause for the discovery, the

burden is on the responding party to justify any objection or failure to fully

respond to the inspection demand. (Coy v Superior Court (1962) 58 Cal.2d

210, 220.)

“If a party filing

a response to a demand for inspection, copying, testing, or sampling under

Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails

to permit the inspection, copying, testing, or sampling in accordance with that

party's statement of compliance, the demanding party may move for an order

compelling compliance.” (Code Civ. Proc. § 2031.320, subd. (a).)

Plaintiff Jennifer

Troia, in her capacity as Director of the California Department of Social

Services (“Plaintiff”) seeks further responses and to compel production of

records from Defendant Gregg Bynum ("Bynum") to Requests for Production No. 2, 3, 13, 18, 19, 31, 32, and 38.

Bynum was a member of the board of Defendant The Food Bank of Southern California ("Foodbank") from 2009 on, and was its director in 2022 and 2023.

(Matsushima Decl. ¶ 15.)

The requests are as

follows. Requests No. 2, 3, and 13, seek communications with Foodbank, its accountants, and its board of directors from January 1, 2016 to the present — the "relevant time period." (Separate Statement at pp. 3–7.) Requests No. 18, 19, and 38 seek documents related to Bynum's time on the board of directors, all board director meeting minutes, and all documents related to his involvement with the Foodbank during the relevant period. (Separate Statement at pp. 8–11, 14–15.) And Requests No. 31 and 32 seek documents relating to Foodbank's tax filings and finances during the same period. (Separate Statement at pp. 11–12.)

Defendant provided

statements of compliance for Requests No. 2, 18, 19, 32, and 38, stating he would produce all responsive non-privileged documents in his possession. As to Request No. 3, relating to communications with accountants, he responded with a

statement of inability to comply because such documents “never existed.”

(Separate Statement at p. 5.) And he provided a less-specific statement of inability to comply for Request No. 31, relating to tax filings, stating that he is “not currently in possession” of responsive documents. (Separate Statement at pp. 11–12.)

Plaintiffs

in the present motion argue that Bynum’s promised documentary production is insufficient, consisting of only 890 pages, comprising 62 documents.

(Matsushima Decl. ¶ 19.) Plaintiff argues that Bynum was a board member of Foodbank from 2009 on, and that per the documents produced in this case the Foodbank’s board members used their personal emails to correspond regarding Foodbank business. (Matsushima Decl. ¶ 16d.) And as secretary and treasurer, Bynum would have been responsible at various times for maintaining minutes of board meetings and keeping its financial records. (Matsushima Decl. Exhs. 6, 7.) But Bynum has produced only four documents relating to board meeting minutes and only nine documents related to Foodbank finances. (Separate Statement at pp. 11, 13–14; Matsushima Decl. ¶ 19.)

Plaintiff

also argues that despite claiming that no correspondence between himself and Foodbank accountants ever existed, concurrent production from another source

reveals at least one such correspondence. (Separate Statement at pp. 5–6.)

Plaintiff also argues that Bynum's statement of inability to comply related to tax filings is not code-compliant. (Separate Statement at pp. 11–12.)

Finally,

Plaintiff argues that the requests sought native files of the documents sought, or image files of the documents, combined with relevant metadata. (Separate statement at p. 17..) But Defendant produced only PDF files in its production.

(Separate Statement at pp. 17–18.)

Defendant

Bynum in opposition argues that Foodbank's President since 2014, Jeane Cooper, exercised exclusive control over Foodbank's finances and that he himself lacked access ordinarily expected to a treasurer during the relevant period.

(Opposition at p. 3.) Bynum argues that most relevant correspondence regarding

Foodbank's financial situation would have been verbal, rather than through

email. (Ibid.) Bynum argues that the failure to produce responsive

documents in native format was the product of inadvertence. (Opposition at p.

4.)

Plaintiff

has shown good cause for the present motion. Bynum is a longstanding board member of the

Foodbank and held official positions as secretary and treasurer during the

relevant period, calling into question the relative scarcity of the production.

Although he proffers explanations for the paucity of his production, he offers

no declaration or other evidence in support of his justifications, whether for

the domineering of Jeane Cooper or the verbal nature of relevant

correspondence.

Indeed,

Bynum in opposing the motion suggests that the requests have been construed in

a manner to limit the universe of responsive production. Request No. 2 seeks

correspondence between Bynum and Foodbank, and Bynum argues that this request

seeks communications with “the Food Bank as an entity,” which during the

relevant period would have been its president Jeane Cooper. (Opposing Separate

Statement at p. 4.) But as noted in Plaintiff’s motion, the request for

correspondence with Foodbank seeks communications with “its principals, operating divisions, present

or former owners, employees, servants, officers, directors, agents,

representatives, and any other PERSONS” acting on its behalf. (Separate

Statement at pp. 2–3.) Bynum’s opposition thus suggests that additional

responsive documents exist, when the requests are properly interpreted.

Bynum

also does not address the defective character of his statements of inability to

comply offered in response to Requests No. 3 and 31. Bynum does not address the

contention that additional correspondence between himself and Foodbank accountants has been found, contradicting his statement that such correspondence "never existed." And his response to Request No. 31, related to tax filings, does not comply with Code of Civil Procedure § 2031.230:

A

representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand.

This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(Code

Civ. Proc., § 2031.230.) Bynum's response offers no explanation as to his inability to comply or who may have responsive documents, and the explanation that he offers in opposition to the present motion is not verified or supported by evidence.

Accordingly, the

motion is GRANTED. Defendant Bynum shall produce all nonprivileged documents

responsive to Requests for Production No. 2, 3, 13, 18, 19, 31, 32, and 38

within 30 days of this order. Simultaneously, he shall serve further discovery

responses to reflect any supplemental productions. ESI shall be produced in

native format.

1.

Sanctions

Statute provides that

the court shall impose sanctions upon a party who unsuccessfully makes or

opposes a motion to compel further response to interrogatories, requests for

production of documents, or requests for admission, absent substantial

justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310,

subd. (h); 2033.290, subd. (d).)

Plaintiff seeks \$13,812.50 in sanctions against Bynum,

representing 21.25 hours of attorney work meeting and conferring on the

discovery at issue and for bringing the present motion, at a rate of \$650 per

hour. (Matsushima Decl. ¶¶ 28–29.) This includes 3.5 hours meeting and

conferring, which included document requests not at issue and yielded

supplemental responses thereto, which hours are properly deducted from the

total. (Matsushima Decl. Exhs. 3–5.) And given the relative simplicity of Bynum's opposition materials, the seven hours anticipated to prepare a reply are properly reduced to 3.5 hours. (Matsushima Decl. ¶ 28.) Accordingly, sanctions are awarded against Bynum in the reduced amount of \$9,262.50.

Superior Court of California

County of Los Angeles

Department 732

JENNIFER

TROIA, DIRECTOR OF CALIFORNIA DEPARTMENT OF SOCIAL SERVICES.,

Plaintiff,

v.

THE FOOD BANK OF SOUTHERN

CALIFORNIA., et al.,

Defendants.

Case No.:

25STCV08698

Hearing Date: June 23, 2026

[TENTATIVE] RULING RE:

Plaintiff

Jennifer Troia, as Director of California's Department of Social Services'

Motion to Compel Further Responses and Production for Requests for Production

from Defendant Gregg Bynum

Plaintiff Jennifer Troia, as Director of California's

Department of Social Services' Motion to Compel Further Responses and

Production for Requests for Production from Defendant Gregg Bynum is GRANTED.

Defendant Bynum shall produce all nonprivileged documents responsive to

Requests for Production No. 2, 3, 13, 18, 19, 31, 32, and 38 within 30 days of

this order. Simultaneously, he shall serve further discovery responses to

reflect any supplemental productions. ESI shall be produced in native format.

Sanctions are awarded against Bynum in the amount of \$9,262.50, also payable

within 30 days.

Plaintiff to give notice.

Dated: June 23, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court